

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: August 13, 2026

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1.	State Farm General Insurance Company v. Gyroor LLC 23-1322521	The unopposed motion by Tianyu Ju and Glacier Law Group to be relieved as counsel for defendant Shenzhen Lanxun Trade Co., Ltd. is GRANTED. Mr. Ju to submit a revised proposed order which shows no upcoming hearings in this matter. The Order will become effective upon filing of a proof of service reflecting service of the resulting Order on the client.

		<i>Attorney Tianyu Ju is ordered to give notice of this ruling.</i>
2.	U.S. Technical Consultants, Inc. v. Cutter Aviation, Inc. 25-1530391	<i>(Continued)</i>
3.	Gonzalez v. FCA US, LLC 23-1337669	Before the Court is an unopposed motion for sanctions filed by defendants FCA US, LLC and Orange Coast Chrysler Dodge Jeep Ram Fiat against counsel for Plaintiffs, Strategic Legal Practice, APC, in the amount of \$7,124. For the reasons set forth below the motion is GRANTED. "A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (<i>Code of Civ. Proc. § 128.5, subd. (a).</i>) Sanctions may also be imposed for violation of local court rules, including ordering counsel or a party to pay to the moving party reasonable attorney fees incurred in making and/or appearing at the hearing on the motion. (<i>Code of Civ. Proc. § 575.2; OCSC Local Rule 318.</i>) Lastly, monetary sanctions may be imposed against a party or counsel, or both, for failure to comply with California Rules of Court pretrial and trial rules. (<i>Cal. Rules of Court, rule 2.30(b).</i>) Here, Defendants have shown (as do court records) that Plaintiffs' counsel has repeatedly failed to appear ready for trial or failed to appear for trial altogether in violation of <i>California Rules of Court, rule 3.1332(a)</i> and causing unnecessary delay. Plaintiffs' counsel has also failed to timely prepare, exchange, and submit required trial documents under Orange County Superior Court <i>Local Rule 317</i>, and failed to communicate with defense counsel in preparing trial documents or otherwise taking steps to comply with the court's trial-setting orders. (Declaration of Michelle R. Prescott ¶¶ 4-30, 32.) The Court therefore awards sanctions in favor of Defendants and against Strategic Legal Practice APC in the amount of \$7,124, which the Court finds reasonable and reasonably incurred as a result of the misconduct. <i>Counsel for Defendants shall give notice of this ruling.</i>
4.	Potter v. Gustafson 26-1554580	<i>(Continued)</i>
5.	Anabi Oil Corporation v. TTV Corp 26-1554180	Before the Court is a motion by Defendants TTV Corp., Thach Vo and Truc Tran (collectively, TTV) in which they seek leave to file a cross-complaint. The motion is GRANTED. The court finds that TTV's cross-complaint is transactionally related to plaintiff's complaint, (See <i>Time for Living, Inc. v. Guy Hatfield Homes/All American Develop. Co.</i> (1991) 230 Cal.App.3d 30, 38-39) and that the interests of justice will be served by granting leave for TTV to file their cross-complaint. (<i>CCP §428.50(c)</i>). Ordinarily, the court does not consider the validity of the proposed amended pleading